

Provision as to what is "machinery fixed or attached."

1. Section forty-two of the Valuation Act, 1854, shall be read and construed as if the following proviso were inserted after the words "and all machinery fixed or attached to any lands or heritages," that is to say: Provided that, in any building occupied for any trade, business or manufacturing process, the expression "machinery fixed or attached" shall be construed as including all machinery, machines or plant in or on the lands or heritages for producing or transmitting first motive power, or for heating or lighting such building, but, save as herein provided, shall not include machines, tools or appliances which are only so fixed that they can be removed from their place without necessitating the removal of any part of the building.

Construction, short title and extent. 17 & 18 Vict. c. 91.

2. This Act shall be read and construed as one with the Lands Valuation (Scotland) Act, 1854, and any Act amending the same, and may be cited separately as the Lands Valuation (Scotland) Amendment Act, 1902, and shall apply to Scotland only.

CHAPTER 26.

An Act to substitute the Government of the Commonwealth of Australia for the Governments of the States of New South Wales, Queensland and Victoria in the Pacific Cable Act, 1901. [8th August 1902.]

1 Edw. 7. c. 31.

WHEREAS, as a consequence of the transfer to the Commonwealth of Australia (under the constitution of the Commonwealth) of the posts, telegraphs, and telephone departments in each of the States of New South Wales, Queensland and Victoria, any such obligation of the said States to provide money on account of the Pacific cable as is recited in the Pacific Cable Act, 1901, has been undertaken by the Government of the Commonwealth, and any right of the said States to share in the profits of the cable has become vested in the Commonwealth:

And whereas it is expedient to make such amendments in the Pacific Cable Act, 1901, as are necessary for the purpose of substituting the Commonwealth for the said States:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Substitution of Australian Commonwealth for States. •

1.—(1) The Government of the Commonwealth of Australia shall be substituted in the Pacific Cable Act, 1901, for the Governments of the States of New South Wales, Queensland and Victoria, and the Colonial Governments referred to in that Act shall accordingly be the Governments of Canada, of the Commonwealth of Australia and of New Zealand.

(2) Two members representing the Government of the Commonwealth of Australia shall be substituted, as members of the Pacific

Cable Board in the Schedule to the said Act, for two members representing the Governments of the States of New South Wales, Queensland and Victoria, and the Government of the Commonwealth may appoint two members accordingly to represent them on the Board; but, until the Government of the Commonwealth appoint a member in his stead, the Honourable Henry Copeland (the surviving representative on the Board of the Governments of the States) shall be one of the members of the Board representing the Government of the Commonwealth.

2. This Act may be cited as the Pacific Cable (Amendment) Short title. Act, 1902.

CHAPTER 27.

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March one thousand nine hundred and one and one thousand nine hundred and three, and to appropriate the Supplies granted in this Session of Parliament. [8th August 1902.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Grants out of Consolidated Fund.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March one thousand nine hundred and one, the sum of one hundred pounds.

Issue of 100*l.*
out of
Consolidated
Fund.

2. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March one thousand nine hundred and three, the sum of seventy-seven million five hundred and twenty-seven thousand six hundred and one pounds.

Issue of
77,527,601*l.*
out of the
Consolidated
Fund.

3.—(1) The Treasury may borrow from any person, by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit

Power for
the Treasury
to borrow.